# MEMORANDUM OF AGREEMENT

**KNOW ALL MEN BY THESE PRESENTS:**

This Memorandum of Agreement is made and executed by and among the members of the Bicol Fisheries Research, Development and Extension Network (BIFIRDEN) chaired by the Bureau of Fisheries and Aquatic Resources, Regional Office No. V, located at **Fabrica, Bula, Camarines Sur**, herein represented by its Regional Director, **DR. NELSON B. BIEN**, hereinafter referred to as **BFAR5**,

And

**Bicol University**, a state-owned educational institution of higher learning, with its principal office located in **Legaspi City, Albay, Philippines** represented herein by its **President, Dr. Arnulfo M. Mascariñas**, hereinafter referred to as **BU**.

**Partido State University**, a state-owned educational institution of higher learning, with its principal office located in **Goa, Camarines Sur, Philippines** represented herein by its **President, Dr. Raul G. Bradecina**, hereinafter referred to as **ParSU**.

**Sorsogon State College**, a state-owned educational institution of higher learning, with its principal office located in **Sorsogon City, Sorsogon, Philippines** represented herein by its **President, Dr. Helen R. Lara**, hereinafter referred to as **SSC**.

**Technical Education and Skills Development Authority (TESDA)**, a state-owned educational institution of higher learning, with its principal office located in **Super Highway, Taguig City, Philippines** represented herein by its **Director General Isidro S. Lapeña**, hereinafter referred to **TESDA**.

**Ragay National Agricultural and Fisheries School**, a state-owned educational institution of higher learning, with its principal office located in **Liboro, Ragay, Camarines Sur, Philippines** represented herein by its **Secondary School Principal II, Ana G. Palenzuela**, hereinafter referred to as **RNAFS**.

**Central Bicol State University of Agriculture** , a state-owned educational institution of higher learning, with its principal office located in **San Jose, Pili , Camarines Sur, Philippines** represented herein by its **President, Dr. Alberto N. Naperi**, hereinafter referred to as **CBSUA**.

**Camarines Norte State College**, a state-owned educational institution of higher learning, with its principal office located in **Daet, Camarines Norte, Philippines** represented herein by its **President , Dr. Rusty G. Abanto**, hereinafter referred to as **CNSC**.

**Catanduanes State University**, a state-owned educational institution of higher learning, with its principal office located in **Virac, Catanduanes, Philippines** represented herein by its **President, Dr. Minerva I. Morales**, hereinafter referred to as **CSU**.

**Department of Science and Technology V**, a government institution with its principal office located in **Rawis, Legaspi City, Philippines** represented herein by its **OIC-Regional Director, Emelita P. Bagsit** , hereinafter referred to as **DOST V**.

**Department of Environment and Natural Resources V**, a government institution with its principal office located in **Rawis, Legaspi City, Philippines** represented herein by its **Regional Director, Atty. Gil A. Aromin**, hereinafter referred to as **DENR V**.

## ARTICLE I

### TERMS OF AGREEMENT

1. The parties involved agree to jointly implement the research entitled "***Diversity and Abundance of Fishes and Mollusks in Bicol River***"

2. The parties involved agree to conduct said research and use available facilities and equipment for the purpose.

3. The parties agree to allocate funds and/or other forms of counterpart for the implementation of research project.

4. The parties shall coordinate and collaborate in the conduct of the research.

5. The parties shall share the claims for any publication rights and protect IPR of the research output. In case of publication, the specific partner agency shall seek written approval from the funding agency.

6. The parties shall form a unified research team in implementing this research.

7. The parties shall establish and maintain regular meeting and updating of the status of the research undertaking.

8. The parties shall abide by the terms and conditions set forth under this agreement.

## ARTICLE II

### RESPONSIBILITIES OF COLLABORATING AGENCIES

**1. BICOL UNIVERSITY (BU) AND SORSOGON STATE COLLEGE (SSC), DEPARTMENT OF SCIENCE AND TECHNOLOGY V (DOST V)-ALBAY AND SORSOGON AND PROVINCIAL ENVIRONMENT AND NATURAL RESOURCES OFFICE (PENRO) ALBAY AND SORSOGON**

a. That Dr. Plutomeo M. Nieves will serve as the Team Leader and will be responsible for organizing its research team.

b. That BU, SSC, DOST V-Albay and Sorsogon and PENRO-Albay and Sorsogon will be in-charge with "Albay part" of the Bicol River.

c. That BU, SSC, DOST V-Albay and Sorsogon and PENRO-Albay and Sorsogon will give release time for its faculty-researchers /staff involved in this Project.

d. That BU, SSC, DOST V-Albay and Sorsogon and PENRO-Albay and Sorsogon will provide funding for travel in form of allowances and vehicle for its faculty researchers/staff.

e. That BU, SSC, DOST V-Albay and Sorsogon and PENRO-Albay and Sorsogon will generate and submit monthly report/s and present in BIERDEN quarterly meetings.

**2. PARTIDO STATE UNIVERSITY (ParSU), CENTRAL BICOL STATE UNIVERSITY OF AGRICULTURE (CBSUA), CATANDUANES STATE UNIVERSITY (CSU), RAGAY NATIONAL AGRICULTURAL AND FISHERIES SCHOOL (RNAFS), PROVINCIAL ENVIRONMENT AND NATURAL RESOURCES OFFICE (PENRO) CAM.SUR AND DEPARTMENT OF SCIENCE AND TECHNOLOGY V (DOST V)-CAM SUR**

a. That Dr. Myrna C. Bigueja will serve as the Team Leader and will be responsible for organizing its research team.

b. That ParSU, CBSUA, CSU, RNAFS, PENRO-Cam Sur & DOST V- Cam Sur will be in-charged with "Camarines Sur part" of the Bicol River.

c. That ParSU, CBSUA, CSU, RNAFS, PENRO- Cam Sur & DOST V- Cam Sur will give release time for its faculty-researchers involved in this Project.

d. That ParSU, CBSUA, CSU, RNAFS, PENRO- Cam Sur & DOST V- Cam Sur will provide funding for travel in form of allowances and vehicle for its faculty researchers/staff.

e. That ParSU, CBSUA, CSU, RNAFS, PENRO Cam Sur and DOST V- Cam Sur will generate and submit monthly report/s and present in quarterly BIFIRDEN meetings.

**3. CAMARINES NORTE STATE COLLEGE (CNSC), CAMARINES SUR INSTITUTE OF FISHERIES & MARINE SCIENCES (CASIFMAS) AND DEPARTMENT OF SCIENCE AND TECHNOLOGY V (DOST V)-CAM NORTE**

a. That Dr. Manuel B. Alberto will serve as the Team Leader and will be responsible for organizing its research team.

b. That CNSC, CASIFMAS and DOST V Cam-Norte will be in-charged with "Camarines Norte part" of the Bicol River.

c. That CNSC, CASIFMAS and DOST V Cam-Norte will give release time for its faculty-researchers involved in this Project.

d. That CNSC, CASIFMAS and DOST V Cam-Norte will provide funding for travel in form of allowances and vehicle for its faculty researchers/staff.

e. That CNSC, CASIFMAS and DOST V Cam-Norte will generate and submit report/s and present in BIFIRDEN meetings.

**4. BUREAU OF FISHERIES AND AQUATIC RESOURCES (BFAR V)**

a. That BFAR shall submit collated report from BIFIRDEN collaborating agencies to BASIL National Focal Person to be submitted to BFAR-Central Office.

**ARTICLE III**

**BREACH OF CONDITION**

In case of failure of one party to perform any of the above mentioned covenants on its part to be made and performed, then the other parties shall, on their option, terminate this agreement within thirty (30) days upon notice thereof.

**ARTICLE IV**

**EFFECTIVITY**

This agreement shall take effect immediately upon signing of all parties and shall be valid and binding unless sooner extended and terminated by reason of breach of the condition enumerated herewith upon advance notice of the other party.

-Witnessed that-

WHEREAS, the Fisheries Code, or Republic Act 8550, as amended by RA 10654, provides the comprehensive legal framework that governs the development, management, and conservation of the country's fisheries and aquatic resources;

WHEREAS, the Department of Agriculture through the Bureau of Fisheries and Aquatic Resources has the responsibility and jurisdiction in the management, conservation, development, protection, utilization and disposition of all fisheries resources in the country, except municipal waters. However, in municipal water the DA-BFAR may coordinate with and assist the LGUs, FARMCs, and other government agencies concerned for the same purpose;

WHEREAS, the BIFIRDEN is comprised of government institutions that have mandates on research, extension and development of the fisheries and aquatic resources of the Bicol Region is continuously undertaking holistic approach and collaborative efforts towards sustainable fisheries development;

WHEREAS, the collaborating SUCs and other agencies of the network-members are mandated by law to conduct relevant and responsive research and development undertakings that would make a difference in the lives of the Bicolano fishers and other stakeholders;

WHEREAS, the collaborating institutions adhere to the principles of sustainable development in establishing the integrity and preservation of the aquatic environment upon which the economy of fishers and the people who depend on it;

WHEREAS, all parties concerned are willing to extend their full cooperation for the common purpose of undertaking collaborative research on **DIVERSITY AND ABUNDANCE OF FISHES AND MOLLUSKS IN BICOL RIVER;**

WHEREAS, the aforementioned research aims to conduct profile on the current status of the fishery and the physical attributes of the Bicol River that would specifically work on the following areas of concern, to wit:

1. identify major fish and macro invertebrates in the Bicol River;
2. identify and characterize the fishing practices in Bicol River;
3. determine fish community zonation along the 94km-long Bicol River; and
4. present feasible management plans to concerned LGUs in relation to Balik Sigla sa Ilog at Lawa (BASIL) Project.

WHEREAS, the Bureau of Fisheries and Aquatic Resources Regional Office as the lead agency of the network, further commits to allocate funds for the conduct of the research in the amount of Two Million Three Hundred Thirty-Eight Thousand pesos (Php 2,338,000.00) for one (1) year implementation;

WHEREAS, the BIFIRDEN, through its Technical Working Group, further commits to undertake the research based on the approved Work Program from the funds allotted by BFAR RO V, without limit or prejudice to the possible counterpart that the member institution can contribute or share whether on mobility or transport of the researchers or on the logistics and equipment that can be shared for use during the conduct of the research.

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties hereby agree on the following terms and conditions:

**WITNESSES:**

**DR. PLUTOMEO M. NIEVES**
Bicol University Tabaco Campus

**MR. SKORZENY DE JESUS**
Bicol University Tabaco Campus

**MR. ANTONINO B. MENDOZA**
Bicol University Tabaco Campus

**DR. MYRNA C. BIGUEJA**
Partido State University

**DR. RYAN V. DIO**
Sorsogon State College

**DR. VICTORINO A. ALMARIO**
Camarines Sur Institute of Fisheries and Marine Sciences

**MS. ILUMINADA LORICO**
Ragay National Agricultural and Fisheries School

**MS. FLORDELIZA VALENZUELA**
Central Bicol State University of Agriculture

**DR. MANUEL B. ALBERTO**
Camarines Norte State College

**MARJURIE B. GRUTAS**
Bureau of Fisheries and Aquatic Resources

**DR. JIMMY MASAGCA**
Catanduanes State University

**MS. PATROCINIO FELIZMENIO**
Department of Science and Technology

**MS. LORNA JARANILLA**
Department of Environment & Natural Resources

**MS. CHERRY B. LEGAZPI**
LGU-OPAg, Sorsogon

**MR. ALVIN CHRISTOPHER C. LAT**
Provincial Fisheries Office- Albay

**MR. JOSE URBANO, JR.**
Provincial Fisheries Office- Camarines Norte

**MS. CONSUELO A. SEMPUEGO**
Provincial Fisheries Office- Camarines Sur

**DR. NOEMI S. LANZUELA**
Bureau of Fisheries and Aquatic Resources

**MS. AIDA S. ANDAYOG**
Bureau of Fisheries and Aquatic Resources

**ADAN S. DIAMANTE**
BFAR-National Inland Fisheries Technology Center

IN WITNESS WHEREOF, the parties have hereunto set their hands this 2nd day of Sept., 2019 in PAS, San Agustin, Pili, Camarines Sur.

For

**ARNULFO M. MASCARIÑAS, Ph.D.**
SUC President IV, BU
Legaspi City, Albay

For

**HELEN R. LARA, Ed.D.**
SUC President II, SSC
Sorsogon City, Sorsogon

**RAUL G. BRADECINA, Ph.D.**
SUC President III, ParSU
Goa, Camarines Sur

**SEC. ISIDRO S. LAPEÑA, Ph.D.**
Director General, TESDA
Super Highway, Taguig City

**MS. ANA G. PALENZUELA**
Secondary School Principal II, RNAFS
Ragay Camarines Sur

**DR ALBERTO N. NAPERI**
President, CBSUA
Pili, Camarines Sur

**RUSTY G. ABANTO, Ph.D.**
President, CNSC
Daet, Camarines Norte

**MS. EMELITA P. BAGSIT**
OIC-Regional Director, DOST V
Legaspi City, Albay

**MINERVA I. MORALES, Ph.D.**
President, CSU
Virac, Catanduanes

**ATTY. GILA. AROMIN**
OIC, Regional Executive Director DENR V
Rawis, Legaspi City

**NELSON B. BIEN, D.F.T.**
Regional Director, BFAR 5
Fabrica, Buhi, Camarines Sur

## ACKNOWLEDGEMENT

**Republic of the Philippines**
**Municipality of** _____

BEFORE ME, A notary Public this _____ day of _____ at _____ Philippines personally, appeared the following

| NAME | Government Identification Number NUMBER | Issued at | Issued on |
|---|---|---|---|
| NELSON B. BIEN | BFAR-R02-001 | Tuguegarao City | |
| ARNULFO M. MASCARIÑAS | 2005-002-3 | BLI Legazpi City | |
| RAUL G. BRADECINA | EC6518477 | DFA Legazpi | 01-19-16 |
| HELEN R. LARA | 0059[illegible]53 | Sorsogon City | 01-23-19 |
| ANA G. PALENZUELA | | | |
| RUSTY G. ABANTO | 001 | Daet, Cam Norte | |
| EMELITA P. BAGSIT | 0007935 | PRC Manila | 10-02-1995 |
| ISIDRO S. LAPEÑA | | | |
| ALBERTO N. NAPERI | 05[illegible]7781 | DNC Legazpi | 6/21/17 |
| MINERVA I. MORALES | CSU ID # 00-260 | VRAE, CATANDUANES | 8/1/2017 |
| GIL A. AROMIN | DENR ID 12X999003 | Quezon City | |

Respectively, known to me and to me known to be the same persons who executed the foregoing contract, and acknowledged to me that the same is their free and voluntary act and deed.

This document contains seven (7) pages including this page.

WITNESS MY HAND AND NOTARIAL SEAL this ____ day of _____ 2019 at the _____ Philippines.

Notary Public
AVELINO V. SALES JR.
PTR No.
IBP No.
Notary Public
Until December 31, 20
PTR No. 9743574 Naga Ci
IP No. 546533 Roll No. 1027
TIN NO. 175-709

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